

STATE OF NEW YORK

8703--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 30, 2025

Introduced by M. of A. MAGNARELLI -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to school bus stop-arm cameras

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 and paragraph d of subdivision 2 of section
2 236 of the vehicle and traffic law, subdivision 1 as amended by section
3 2 of part N of chapter 58 of the laws of 2025, paragraph d of subdivi-
4 sion 2 as amended by chapter 342 of the laws of 1981, are amended to
5 read as follows:

6 1. Creation. In any city as hereinbefore or hereafter authorized such
7 tribunal when created shall be known as the parking violations bureau
8 and shall have jurisdiction of traffic infractions which constitute a
9 parking violation and, any county, town, or village or hereafter author-
10 ized such tribunal when created shall be known as a traffic-camera
11 violations bureau, where authorized: (a) to adjudicate the liability of
12 owners for violations of subdivision (d) of section eleven hundred elev-
13 en of this chapter imposed pursuant to a local law or ordinance imposing
14 monetary liability on the owner of a vehicle for failure of an operator
15 thereof to comply with traffic-control indications through the installa-
16 tion and operation of traffic-control signal photo violation-monitoring
17 systems, in accordance with article twenty-four of this chapter, or (b)
18 to adjudicate the liability of owners for violations of subdivision (b),
19 (c), (d), (f) or (g) of section eleven hundred eighty of this chapter
20 imposed pursuant to a demonstration program imposing monetary liability

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 on the owner of a vehicle for failure of an operator thereof to comply
2 with such posted maximum speed limits through the installation and oper-
3 ation of photo speed violation monitoring systems, in accordance with
4 article thirty of this chapter, or (c) to adjudicate the liability of
5 owners for violations of bus lane restrictions as defined by article
6 twenty-four of this chapter imposed pursuant to a bus rapid transit
7 program imposing monetary liability on the owner of a vehicle for fail-
8 ure of an operator thereof to comply with such bus lane restrictions
9 through the installation and operation of bus lane photo devices, in
10 accordance with article twenty-four of this chapter, or (d) to adjudi-
11 cate the liability of owners for violations of toll collection regu-
12 lations imposed by certain public authorities pursuant to the law
13 authorizing such public authorities to impose monetary liability on the
14 owner of a vehicle for failure of an operator thereof to comply with
15 toll collection regulations of such public authorities through the
16 installation and operation of photo-monitoring systems, in accordance
17 with the provisions of section two thousand nine hundred eighty-five of
18 the public authorities law and sections sixteen-a, sixteen-b and
19 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
20 hundred fifty, or (e) to adjudicate the liability of owners for
21 violations of section eleven hundred seventy-four of this chapter when
22 meeting a school bus marked and equipped as provided in subdivisions
23 twenty and twenty-one-c of section three hundred seventy-five of this
24 chapter imposed pursuant to a local law or ordinance imposing monetary
25 liability on the owner of a vehicle for failure of an operator thereof
26 to comply with school bus red visual signals through the installation
27 and operation of school bus photo violation monitoring systems, in
28 accordance with article twenty-nine of this chapter, or (f) to adjudi-
29 cate the liability of owners for violations of section three hundred
30 eighty-five of this chapter and the rules of the applicable covered
31 agency or covered authority as such terms are defined in article ten of
32 this chapter in relation to gross vehicle weight and/or axle weight
33 violations imposed pursuant to a weigh in motion demonstration program
34 imposing monetary liability on the owner of a vehicle for failure of an
35 operator thereof to comply with such gross vehicle weight and/or axle
36 weight restrictions through the installation and operation of weigh in
37 motion violation monitoring systems, in accordance with article ten of
38 this chapter, or (g) to adjudicate the liability of owners for
39 violations of subdivision (b), (d), (f) or (g) of section eleven hundred
40 eighty of this chapter imposed pursuant to a demonstration program
41 imposing monetary liability on the owner of a vehicle for failure of an
42 operator thereof to comply with such posted maximum speed limits within
43 a highway construction or maintenance work area through the installation
44 and operation of photo speed violation monitoring systems, in accordance
45 with article thirty of this chapter, or (h) to adjudicate the liability
46 of owners for violations of bus operation-related traffic regulations as
47 defined by article twenty-four of this chapter imposed pursuant to a
48 demonstration program imposing monetary liability on the owner of a
49 vehicle for failure of an operator thereof to comply with such bus oper-
50 ation-related traffic regulations through the installation and operation
51 of bus operation-related photo devices, in accordance with article twen-
52 ty-four of this chapter. Such tribunal, except in a city with a popu-
53 lation of one million or more, shall also have jurisdiction of abandoned
54 vehicle violations. For the purposes of this article, a parking
55 violation is the violation of any law, rule or regulation providing for
56 or regulating the parking, stopping or standing of a vehicle. In addi-

tion for purposes of this article, "commissioner" shall mean and include the commissioner of traffic of the city or an official possessing authority as such a commissioner.

d. The commissioner shall appoint hearing examiners who shall preside at hearings for the adjudication of charges of parking violations and other violations authorized by law. Hearing examiners shall be appointed and shall serve for such number of sessions as may be determined by the commissioner and shall receive therefor, such remuneration as may be fixed. Such hearing examiners shall not be considered employees of the county, city, town, or village in which the administrative tribunal has been established. Every hearing examiner shall have been admitted to the practice of law in this state for a period of at least five years, except in cities having a population of one million or more persons where they shall have been admitted to such practice for a period of at least three years. Hearing examiners shall be appointed from a list of eligible candidates who have satisfied the standards established by a duly constituted committee of the bar association of the county in which the city is located or, the association of the bar of that city.

§ 2. Subparagraph (i) of paragraph a of subdivision 5-a of section 401 of the vehicle and traffic law, as amended by section 7 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

(i) If at the time of application for a registration or renewal thereof there is a certification from a court, parking violations bureau, traffic and parking violations agency or administrative tribunal of appropriate jurisdiction that the registrant or their representative failed to appear on the return date or any subsequent adjourned date or failed to comply with the rules and regulations of an administrative tribunal following entry of a final decision in response to either a total of three or more summonses or other process in the aggregate, issued within an eighteen month period, or summonses or other process in the aggregate resulting in total monetary liability of two hundred fifty dollars or greater, charging either that: (i) such motor vehicle was parked, stopped or standing, or that such motor vehicle was operated for hire by the registrant or their agent without being licensed as a motor vehicle for hire by the appropriate local authority, in violation of any of the provisions of this chapter or of any law, ordinance, rule or regulation made by a local authority; or (ii) the registrant was liable for a violation of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or (iii) the registrant was liable for a violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or (iv) the registrant was liable for a violation of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or (v) the registrant was liable for a

1 violation of section eleven hundred seventy-four of this chapter when
2 meeting a school bus marked and equipped as provided in subdivisions
3 twenty and twenty-one-c of section three hundred seventy-five of this
4 chapter imposed pursuant to a local law or ordinance imposing monetary
5 liability on the owner of a vehicle for failure of an operator thereof
6 to comply with school bus red visual signals through the installation
7 and operation of school bus photo violation monitoring systems, in
8 accordance with article twenty-nine of this chapter; or (vi) the regis-
9 trant was liable for a violation of section three hundred eighty-five of
10 this chapter and the rules of the applicable covered agency or covered
11 authority as such terms are defined in article ten of this chapter in
12 relation to gross vehicle weight and/or axle weight violations imposed
13 pursuant to a weigh in motion demonstration program imposing monetary
14 liability on the owner of a vehicle for failure of an operator thereof
15 to comply with such gross vehicle weight and/or axle weight restrictions
16 through the installation and operation of weigh in motion violation
17 monitoring systems, in accordance with article ten of this chapter; or
18 (vii) the registrant was liable for a violation of subdivision (b), (d),
19 (f) or (g) of section eleven hundred eighty of this chapter imposed
20 pursuant to a demonstration program imposing monetary liability on the
21 owner of a vehicle for failure of an operator thereof to comply with
22 such posted maximum speed limits within a highway construction or main-
23 tenance work area through the installation and operation of photo speed
24 violation monitoring systems, in accordance with article thirty of this
25 chapter, or (viii) the registrant was liable for a violation of bus
26 operation-related traffic regulations as defined by article twenty-four
27 of this chapter imposed pursuant to a demonstration program imposing
28 monetary liability on the owner of a vehicle for failure of an operator
29 thereof to comply with such bus operation-related traffic regulations
30 through the installation and operation of bus operation-related photo
31 devices, in accordance with article twenty-four of this chapter, the
32 commissioner or their agent shall deny the registration or renewal
33 application until the applicant provides proof from the court, traffic
34 and parking violations agency or administrative tribunal wherein the
35 charges are pending that an appearance or answer has been made or in the
36 case of an administrative tribunal that such applicant has complied with
37 the rules and regulations of said tribunal following entry of a final
38 decision. Where an application is denied pursuant to this section, the
39 commissioner may, in their discretion, deny a registration or renewal
40 application to any other person for the same vehicle and may deny a
41 registration or renewal application for any other motor vehicle regis-
42 tered in the name of the applicant where the commissioner has determined
43 that such registrant's intent has been to evade the purposes of this
44 subdivision and where the commissioner has reasonable grounds to believe
45 that such registration or renewal will have the effect of defeating the
46 purposes of this subdivision. Such denial shall only remain in effect as
47 long as the summonses remain unanswered, or in the case of an adminis-
48 trative tribunal, the registrant fails to comply with the rules and
49 regulations following entry of a final decision.

50 § 3. Subdivision (a) of section 1174 of the vehicle and traffic law,
51 as amended by chapter 597 of the laws of 1990, is amended to read as
52 follows:

53 (a) The driver of a vehicle upon a public highway, street or private
54 road upon meeting or overtaking from either direction any school bus,
55 for which there shall be a rebuttable presumption that such school bus
56 was marked and equipped as provided in subdivision twenty of section

1 three hundred seventy-five of this chapter which has stopped on the
2 public highway, street or private road for the purpose of receiving or
3 discharging any passengers, or which has stopped because a school bus in
4 front of it has stopped to receive or discharge any passengers, shall
5 stop the vehicle before reaching such school bus when there is in opera-
6 tion on said school bus a red visual signal as specified in subdivision
7 twenty of section three hundred seventy-five of this chapter and said
8 driver shall not proceed until such school bus resumes motion, or until
9 signaled by the driver or a police officer to proceed. For the purposes
10 of this section, and in addition to the provisions of section one
11 hundred thirty-four of this chapter, the term "public highway" shall
12 mean any area used for the parking of motor vehicles or used as a drive-
13 way located on the grounds of a school or of a board of cooperative
14 educational services facility or any area used as a means of access to
15 and egress from such school or facility.

16 § 4. Paragraphs 1 and 2 of subdivision (a) of section 1174-a of the
17 vehicle and traffic law, as amended by section 1 of part AA of chapter
18 56 of the laws of 2024, are amended to read as follows:

19 1. Notwithstanding any other provision of law, a county, city, town or
20 village located within a school district ("district") is hereby author-
21 ized and empowered to adopt and amend a local law or ordinance applica-
22 ble to all roadways within its boundaries establishing a demonstration
23 program imposing monetary liability on the owner of a vehicle for fail-
24 ure of an operator thereof to comply with subdivision (a) of section
25 eleven hundred seventy-four of this article when meeting a school bus
26 marked and equipped as provided in subdivisions twenty and twenty-one-c
27 of section three hundred seventy-five of this chapter and operated in
28 such county, city, town or village, in accordance with the provisions of
29 this section. Such demonstration program shall empower such county,
30 city, town or village to install and operate school bus photo violation
31 monitoring systems which may be stationary or mobile, and which may be
32 installed, pursuant to an agreement with a school district within such
33 county, city, town or village, on school buses owned and operated by
34 such school district or privately owned and operated for compensation
35 under contract with such district. Provided, however, that (a) no
36 stationary school bus photo violation monitoring system shall be
37 installed or operated by a county, city, town or village except on road-
38 ways under the jurisdiction of such county, city, town or village, and
39 (b) no mobile school bus photo violation monitoring system shall be
40 installed or operated on any such school buses unless such county, city,
41 town or village and such district enter into an agreement for such
42 installation and operation.

43 2. Any image or images captured by school bus photo violation monitor-
44 ing systems shall be inadmissible in any disciplinary proceeding
45 convened by any school district or any school bus contractor thereof,
46 and any proceeding initiated by the department involving licensure priv-
47 ileges of school bus operators. [Any] Notwithstanding any other
48 provision of this section, any school bus photo violation monitoring
49 device mounted on a school bus shall be directed outwardly from such
50 school bus to capture images of vehicles operated in violation of subdi-
51 vision (a) of section eleven hundred seventy-four of this article, and
52 images produced by such device shall not be used for any other purpose,
53 including federal immigration enforcement assistance, except as provided
54 by section eleven hundred eleven-c of this title, for statistical
55 purposes, educational purposes, or other governmental purposes.

§ 5. Subparagraph (i) of paragraph 3 of subdivision (a) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

(i) ~~[Any]~~ Until final disposition of a notice of liability issued pursuant to this section, any participating school district shall be prohibited from accessing any photographs, microphotographs, videotapes, other recorded images or data from school bus photo violation monitoring systems allegedly evidencing a motor vehicle operated in violation of subdivision (a) of section eleven hundred seventy-four of this article,

but shall provide, pursuant to an agreement with a county, city, town or village as provided in this section, for the proper handling and custody of such photographs, microphotographs, videotapes, other recorded images and data produced by such systems, and for the forwarding of such photographs, microphotographs, videotapes, other recorded images and data to the applicable county, city, town or village for the purpose of determining whether a motor vehicle was operated in violation of subdivision (a) of section eleven hundred seventy-four of this ~~[title]~~ article and imposing monetary liability on the owner of such motor vehicle therefor.

§ 6. Paragraph 4 of subdivision (a) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, subparagraph (iii) as amended by section 1 of part AA of chapter 56 of the laws of 2024, is amended to read as follows:

4. A county, city, town or village establishing a demonstration program pursuant to this section shall adopt and enforce measures to protect the privacy of drivers, passengers, pedestrians and cyclists whose identity and identifying information may be captured by a school bus photo violation monitoring device. Such measures shall include:

(i) utilization of necessary technologies to ensure, to the extent practicable, that photographs produced by such school bus photo violation monitoring systems shall not include images that identify the driver, the passengers, the contents of the vehicle, pedestrians and cyclists. Provided, however, that no notice of liability issued pursuant to this section shall be dismissed solely because a photograph or photographs allow for the identification of the contents of a vehicle, provided that such county, city, town or village has made a reasonable effort to comply with the provisions of this paragraph;

(ii) a prohibition on the use or dissemination of vehicles' license plate information and other information and images captured by school bus photo violation monitoring systems except: (A) as required to establish liability under this section or collect payment of penalties; (B) as required by court order; or (C) as otherwise required permitted by law;

(iii) the installation of signage in conformance with standards established in the MUTCD at each roadway entrance of the jurisdictional boundaries of such county, city, town or village giving notice that school bus photo violation monitoring systems are used to enforce restrictions on vehicles violating subdivision (a) of section eleven hundred seventy-four of this article. For the purposes of this paragraph, the term "roadway" shall not include state expressway routes or state interstate routes but shall include controlled-access highway exit ramps that enter the jurisdictional boundaries of a county, city, town or village; and

(iv) oversight procedures to ensure compliance with the aforementioned privacy protection measures.

§ 7. Subdivision (c) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

(c) For purposes of this section, the following terms shall have the following meanings: "county" shall have the meaning provided in section three of the county law, except that such term shall not include any county wholly contained within a city; "local tribunal" shall mean a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a county, city, town, or village has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such county, city, town, or village may, by local law, authorize such adjudication by such tribunal and except that adjudication of liability imposed upon owners by this section for violations occurring in the city of New York shall be by the New York city parking violations bureau; "manual on uniform traffic control devices" or "MUTCD" shall mean the manual and specifications for a uniform system of traffic control devices maintained by the commissioner of transportation pursuant to section sixteen hundred eighty of this chapter; "owner" shall have the meaning provided in article two-B of this chapter; "school district" shall have the meaning as "educational agency" as provided in section two-d of the education law; and "school bus photo violation monitoring system" shall mean a device that is capable of operating independently of an enforcement officer which is installed to work in conjunction with a school bus stop-arm and which automatically produces two or more photographs, two or more microphotographs, a videotape or other recorded images of a vehicle at the time it is used or operated in violation of subdivision (a) of section eleven hundred seventy-four of this article.

§ 8. Paragraph 2 of subdivision (g) of section 1174-a of the vehicle and traffic law, as amended by section 4 of part AA of chapter 56 of the laws of 2024, is amended and a new paragraph 4 is added to read as follows:

2. A notice of liability shall contain the name and address of the person alleged to be liable as an owner for a violation of subdivision (a) of section eleven hundred seventy-four of this article pursuant to this section[7]; the registration number of the vehicle involved in such violation[7]; the location where such violation took place, the date and time of such violation[7]; the identification number of the school bus photo violation monitoring system which recorded the violation or other document locator number[7]; and the registration number of the school bus on which the school bus photo violation monitoring system which recorded the violation was installed; instructions for payment, noting that payment is deemed an admission of liability; information advising the person charged of the manner and the time in which they may contest the liability alleged in the notice within thirty-seven days of receipt, which may include an in-person hearing in accordance with the provisions of subdivision (h) of this section, and at the discretion of the local tribunal, may also include contestation by online video conferencing or by mail through submission of a written explanation.

4. For the purposes of this section, the notice of liability containing the information set forth in paragraph two of this subdivision shall be deemed sufficient to initiate proceedings in accordance with the procedures set forth in this subdivision and subdivision (h) of this section.

§ 9. Subdivision (h) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

(h) Adjudication of the liability imposed upon owners by this section shall be by ~~[a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a city has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such city may, by local law, authorize such adjudication by such tribunal]~~ a local tribunal pursuant to this section. For any local tribunal pursuant to this section having jurisdiction over traffic infractions where the violation occurred, a notice of liability validly imposed in accordance with subdivision (g) of this section shall be valid for purposes of such tribunal adjudicating such liability, and such tribunal shall adjudicate such liability in a manner not inconsistent with the procedures for a hearing officer pursuant to paragraphs (a), (b) and (c) of subdivision two of sections two hundred forty and two hundred forty-one of this chapter. Provided, however, subsequent judicial review may be sought pursuant to article seventy-eight of the civil practice law and rules. Notwithstanding any other provision of law, such local tribunal may adjudicate such liability remotely by online video conferencing or by mail through submission of a written explanation. Within fourteen business days after the local tribunal has rendered a decision, a notice of decision shall be prepared and sent by first class mail to the owner by the local tribunal or its designee. A manual or automatic record of mailing prepared in the ordinary course of business shall be prima facie evidence of the facts contained therein. If the owner is deemed liable, they shall be notified that nonpayment of the penalty imposed in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

§ 10. Paragraphs 1, 2 and 2-b of subdivision (a) of section 1180-e of the vehicle and traffic law, paragraphs 1 and 2 as amended by section 1 and paragraph 2-b as added by section 2 of part Q of chapter 58 of the laws of 2025, are amended to read as follows:

1. Notwithstanding any other provision of law, the commissioner of transportation is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits in a highway construction or maintenance work area located on a controlled-access highway: (i) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (ii) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. Such demonstration program shall empower the commissioner to install photo speed violation monitoring systems within no more than forty highway construction or maintenance work areas located on controlled-access highways and to operate such systems within such work areas; (iii) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (iv) when highway construction or

1 maintenance work is occurring and other speed limits are in effect as
2 provided in subdivision (b) or (g) or paragraph one of subdivision (d)
3 of section eleven hundred eighty of this article. The commissioner, in
4 consultation with the superintendent of the division of state police,
5 shall determine the location of the highway construction or maintenance
6 work areas located on a controlled-access highway in which to install
7 and operate photo speed violation monitoring systems. In selecting a
8 highway construction or maintenance work area in which to install and
9 operate a photo speed violation monitoring system, the commissioner
10 shall consider criteria including, but not limited to, the speed data,
11 crash history, and roadway geometry applicable to such highway
12 construction or maintenance work area. A photo speed violation monitor-
13 ing system shall not be installed or operated on a controlled-access
14 highway exit ramp. The commissioner and a local tribunal may enter into
15 a memorandum of understanding for the purposes of facilitating adjudi-
16 cation of liability imposed upon owners by this section. Such memorandum
17 may address provisions for cost sharing and prosecutorial responsibil-
18 ities.

19 2. Notwithstanding any other provision of law, after holding a public
20 hearing in accordance with the public officers law and subsequent
21 approval of the establishment of a demonstration program in accordance
22 with this section by a majority of the members of the entire board of
23 the thruway authority, the chair of the thruway authority is hereby
24 authorized to establish a demonstration program imposing monetary
25 liability on the owner of a vehicle for failure of an operator thereof
26 to comply with posted maximum speed limits in a highway construction or
27 maintenance work area located on the thruway: (i) when highway
28 construction or maintenance work is occurring and a work area speed
29 limit is in effect as provided in paragraph two of subdivision (d) or
30 subdivision (f) of section eleven hundred eighty of this article; or
31 (ii) when highway construction or maintenance work is occurring and
32 other speed limits are in effect as provided in subdivision (b) or (g)
33 or paragraph one of subdivision (d) of section eleven hundred eighty of
34 this article. Such demonstration program shall empower such chair to
35 install photo speed violation monitoring systems within no more than
36 twenty highway construction or maintenance work areas located on the
37 thruway and to operate such systems within such work areas; (iii) when
38 highway construction or maintenance work is occurring and a work area
39 speed limit is in effect as provided in paragraph two of subdivision (d)
40 or subdivision (f) of section eleven hundred eighty of this article; or
41 (iv) when highway construction or maintenance work is occurring and
42 other speed limits are in effect as provided in subdivision (b) or (g)
43 or paragraph one of subdivision (d) of section eleven hundred eighty of
44 this article. The chair of the thruway authority, in consultation with
45 the superintendent of the division of state police, shall determine the
46 location of the highway construction or maintenance work areas located
47 on the thruway in which to install and operate photo speed violation
48 monitoring systems. In selecting a highway construction or maintenance
49 work area in which to install and operate a photo speed violation moni-
50 toring system, such chair shall consider criteria including, but not
51 limited to, the speed data, crash history, and roadway geometry applica-
52 ble to such highway construction or maintenance work area. A photo speed
53 violation monitoring system shall not be installed or operated on a
54 thruway exit ramp. The chair of the thruway authority and a local
55 tribunal may enter into a memorandum of understanding for the purposes
56 of facilitating adjudication of liability imposed upon owners by this

section. Such memorandum may address provisions for cost sharing and prosecutorial responsibilities.

2-b. Notwithstanding any other provision of law, after holding a public hearing in accordance with the public officers law and subsequent approval of the establishment of a demonstration program in accordance with this section by a majority of the members of the entire board of the bridge authority, the chair of the bridge authority is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits in a highway construction or maintenance work area located on bridge authority facilities; (i) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (ii) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. Such demonstration program shall empower such chair to install photo speed violation monitoring systems within no more than five highway construction or maintenance work areas located on bridge authority facilities and to operate such systems within such work areas; (iii) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (iv) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. The chair of the bridge authority, in consultation with the superintendent of the division of state police, shall determine the location of the highway construction or maintenance work areas located on bridge authority facilities in which to install and operate photo speed violation monitoring systems. In selecting a highway construction or maintenance work area in which to install and operate a photo speed violation monitoring system, such chair shall consider criteria including, but not limited to, the speed data, crash history, and roadway geometry applicable to such highway construction or maintenance work area. The New York state department of transportation may enter into a memorandum of understanding with the bridge authority for the purposes of coordinating the planning, design, and installation of photo speed violation monitoring systems in such photo speed violation monitoring demonstration program. Such memorandum shall address, for purposes of such demonstration program, the use of systems, devices and other facilities owned and operated by the state. The chair of the bridge authority and a local tribunal may enter into a memorandum of understanding for the purposes of facilitating adjudication of liability imposed upon owners by this section. Such memorandum may address provisions for cost sharing and prosecutorial responsibilities.

§ 11. Paragraphs 12 and 13 of subdivision (c) of section 1180-e of the vehicle and traffic law, as added by section 2 of part Q of chapter 58 of the laws of 2025, are amended and a new paragraph 14 is added to read as follows:

12. "Triborough bridge and tunnel authority" shall mean the corporation organized pursuant to section five hundred fifty-two of the public authorities law; ~~and~~

13. "Triborough bridge and tunnel authority facility" shall mean the following bridges and tunnels under the jurisdiction of the Triborough

1 bridge and tunnel authority: the Bronx-Whitestone bridge; the Cross Bay
2 Veterans Memorial bridge; the Henry Hudson bridge; the Marine Parkway-
3 Gil Hodges Memorial bridge; the Robert F. Kennedy bridge; the Throgs
4 Neck bridge; the Verrazzano-Narrows bridge; the Hugh L. Carey tunnel;
5 and the Queens Midtown tunnel[-]; and

6 14. "Local tribunal" shall mean a traffic violations bureau estab-
7 lished pursuant to section three hundred seventy of the general municipi-
8 pal law where the violation occurred or, if there be none, by the court
9 having jurisdiction over traffic infractions where the violation
10 occurred, except that if a county, city, town, or village has estab-
11 lished an administrative tribunal to hear and determine complaints of
12 traffic infractions constituting parking, standing or stopping
13 violations such county, city, town, or village may, by local law,
14 authorize such adjudication by such tribunal and except that adjudi-
15 cation of liability imposed upon owners by this section for violations
16 occurring in the city of New York shall be by the New York city parking
17 violations bureau.

18 § 12. Subdivision (g) of section 1180-e of the vehicle and traffic law
19 is amended by adding a new paragraph 5 to read as follows:

20 5. For the purposes of this section, the notice of liability contain-
21 ing the information set forth in paragraph two of this subdivision shall
22 be deemed sufficient to initiate proceedings in accordance with the
23 procedures set forth in this subdivision and subdivision (h) of this
24 section.

25 § 13. Subdivision (h) of section 1180-e of the vehicle and traffic
26 law, as amended by section 2 of part Q of chapter 58 of the laws of
27 2025, is amended to read as follows:

28 (h) Adjudication of the liability imposed upon owners by this section
29 shall be by a [~~traffic violations bureau established pursuant to section~~
30 ~~three hundred seventy of the general municipal law where the violation~~
31 ~~occurred or, if there be none, by the court having jurisdiction over~~
32 ~~traffic infractions where the violation occurred, except that if a city~~
33 ~~has established an administrative tribunal to hear and determine~~
34 ~~complaints of traffic infractions constituting parking, standing or~~
35 ~~stopping violations such city may, by local law, authorize such adjudi-~~
36 ~~cation by such tribunal and except that adjudication of liability~~
37 ~~imposed upon owners by this section for violations occurring in the city~~
38 ~~of New York shall be by the New York city parking violations bureau.]~~
39 local tribunal pursuant to this section. For any local tribunal pursuant
40 to this section having jurisdiction over traffic infractions where the
41 violation occurred, a notice of liability validly imposed in accordance
42 with subdivision (g) of this section shall be valid for purposes of such
43 tribunal adjudicating such liability, and such tribunal shall adjudicate
44 such liability in a manner not inconsistent with the procedures for a
45 hearing officer pursuant to paragraphs (a), (b) and (c) of subdivision
46 two of sections two hundred forty and two hundred forty-one of this
47 chapter. Provided, however, subsequent judicial review may be sought
48 pursuant to article seventy-eight of the civil practice law and rules.
49 Notwithstanding any other provision of law, such local tribunal may
50 adjudicate such liability remotely by online video conferencing or by
51 mail through submission of a written explanation. Within fourteen busi-
52 ness days after the local tribunal has rendered a decision, a notice of
53 decision shall be prepared and sent by first class mail to the owner by
54 the local tribunal or its designee. A manual or automatic record of
55 mailing prepared in the ordinary course of business shall be prima facie
56 evidence of the facts contained therein. If the owner is deemed liable,

1 they shall be notified that nonpayment of the penalty imposed in the
2 manner and time provided shall be deemed an admission of liability and
3 that a default judgment may be entered thereon.

4 § 14. The opening paragraph of subparagraph (i) of paragraph 2 of
5 subdivision (j) of section 1180-e of the vehicle and traffic law, as
6 amended by section 2 of part Q of chapter 58 of the laws of 2025, is
7 amended to read as follows:

8 In the city of New York and in any county, city, town, or village
9 which, by local law, has authorized the adjudication of liability
10 imposed upon owners by this section by a parking violations bureau, an
11 owner who is a lessor of a vehicle to which a notice of liability was
12 issued pursuant to subdivision (g) of this section shall not be liable
13 for the violation of subdivision (b), (d), (f) or (g) of section eleven
14 hundred eighty of this article, provided that:

15 § 15. Subdivision 10 of section 1803 of the vehicle and traffic law,
16 as added by chapter 145 of the laws of 2019, is amended to read as
17 follows:

18 10. Except where a county by local law has authorized an administra-
19 tive tribunal to hear impositions of monetary liability on the owner of
20 a vehicle for failure of an operator thereof to comply with section
21 eleven hundred seventy-four of this chapter in accordance with section
22 eleven hundred seventy-four-a of this chapter or as otherwise provided
23 in paragraph e of subdivision one of this section, where a county has
24 established a demonstration program imposing monetary liability on the
25 owner of a vehicle for failure of an operator thereof to comply with
26 section eleven hundred seventy-four of this chapter in accordance with
27 section eleven hundred seventy-four-a of this chapter, any fine or
28 penalty collected by a court, judge, magistrate or other officer for an
29 imposition of liability which occurs within such county pursuant to such
30 program shall be paid to the state comptroller within the first ten days
31 of the month following collection. Every such payment shall be accompa-
32 nied by a statement in such form and detail as the comptroller shall
33 provide. The comptroller shall pay ninety percent of any such fine or
34 penalty imposed for such liability to the county in which the violation
35 giving rise to the liability occurred, and ten percent of any such fine
36 or penalty to the city, town or village in which the violation giving
37 rise to the liability occurred.

38 § 16. This act shall take effect immediately; provided, however, that
39 the amendments to:

40 1. paragraphs 1 and 2 of subdivision (a) of section 1174-a of the
41 vehicle and traffic law made by section four of this act shall not
42 affect the repeal of such section and shall be deemed repealed there-
43 with;

44 2. subparagraph (i) of paragraph 3 of subdivision (a) of section
45 1174-a of the vehicle and traffic law made by section five of this act
46 shall not affect the repeal of such section and shall be deemed repealed
47 therewith;

48 3. paragraph 4 of subdivision (a) of section 1174-a of the vehicle and
49 traffic law made by section six of this act shall not affect the repeal
50 of such section and shall be deemed repealed therewith;

51 4. subdivision (c) of section 1174-a of the vehicle and traffic law
52 made by section seven of this act shall not affect the repeal of such
53 section and shall be deemed repealed therewith;

54 5. paragraph 2 of subdivision (g) of section 1174-a of the vehicle and
55 traffic law made by section eight of this act shall not affect the
56 repeal of such section and shall be deemed repealed therewith;

1 6. subdivision (h) of section 1174-a of the vehicle and traffic law
2 made by section nine of this act shall not affect the repeal of such
3 section and shall be deemed repealed therewith;
4 7. paragraphs 1, 2 and 2-b of subdivision (a) of section 1180-e of the
5 vehicle and traffic law made by section ten of this act shall not affect
6 the repeal of such section and shall be deemed repealed therewith;
7 8. paragraphs 12, 13 and 14 of subdivision (c) of section 1180-e of
8 the vehicle and traffic law made by section eleven of this act shall not
9 affect the repeal of such section and shall be deemed repealed there-
10 with;
11 9. paragraph 5 of subdivision (g) of section 1180-e of the vehicle and
12 traffic law made by section twelve of this act shall not affect the
13 repeal of such section and shall be deemed repealed therewith;
14 10. subdivision (h) of section 1180-e of the vehicle and traffic law
15 made by section thirteen of this act shall not affect the repeal of such
16 section and shall be deemed repealed therewith;
17 11. subparagraph (i) of paragraph 2 of subdivision (j) of section
18 1180-e of the vehicle and traffic law made by section fourteen of this
19 act shall not affect the repeal of such section and shall be deemed
20 repealed therewith; and
21 12. subdivision 10 of section 1803 of the vehicle and traffic law made
22 by section fifteen of this act shall not affect the repeal of such
23 subdivision and shall be deemed repealed therewith.